Notification Waiver Determination

ORIX Aviation - AerFin

Acquisition	ORIX Aviation Systems Limited (**ORIX Aviation**) applied for a notification waiver in respect of its proposed acquisition of 100% of the shares in Atlantic Holdco Limited, including its wholly-owned subsidiary, AerFin Limited (**AerFin**) as described in the transaction documents provided as part of the application (the **Acquisition**).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the *Competition and Consumer Act 2010* (Cth) that the Acquisition is not required to be notified.
Date of determination	16 October 2026

Parties to the Acquisition	The acquirer, ORIX Aviation, is a wholly owned subsidiary of Japan-based ORIX Corporation. ORIX Aviation owns and manages more than 200 commercial aircraft and leases them to airline customers in over 40 countries. It also provides asset-management services to Japanese and international investors and funds through a full-service leasing platform. ORIX Aviation also holds a 30% interest in Avolon Holdings Limited (**Avolon**), which owns and manages more than 600 aircraft. The target, Atlantic Holdco Limited, is a private company incorporated in England and Wales. AerFin is the primary operating subsidiary of Atlantic Holdco Limited. AerFin is a UK-based aviation aftermarket specialist that buys, sells, leases and repairs aircraft, engines, and spare and used serviceable parts. AerFin serves airlines, maintenance, repair, and overhaul providers, brokers, and leasing companies worldwide. The parties are both active in the supply of used aircraft and aircraft engines.
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the **ACCC**) has considered the information provided with the notification waiver application, and had regard to the factors in section 51ABV(2)(b) of the *Competition and Consumer Act 2010* (Cth) (the **Act**). Based on the information provided in the application, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition given: a. the parties' combined share in the supply of used aircraft and aircraft engines is low, and the increase in share arising from the Acquisition would be small

	b. there are alternative suppliers of used aircraft and aircraft engines c. there is a low risk of foreclosure or other concerning vertical effects resulting from exclusionary conduct post-acquisition. In these circumstances, the ACCC does not consider it necessary to reach a concluded view on the likelihood of the notification thresholds being met. Given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's guidance on notification waivers and merger assessment guidelines.

Determination made by Commissioner Williams pursuant to a delegation under section 25(1) of the Act